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County of Santa Clara Registrar of Voters

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BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. ~~The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org.~~ Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

Time/Date Stamp

FILED
AUG 10 2026
REGISTRAR OF VOTERS
COUN
By [redacted] Deputy

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Sunnyvale

Primary Argument due date (E-84): August 11, 2026
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

SECTION 1: ARGUMENT INFORMATION

Measure Letter I_____ (if available – letters will be assigned after 5:00 p.m. on E-88)

Select the Type of Argument you are Filing

☐ Primary Argument in Favor / Proponent

☑ Primary Argument Against / Opponent

SECTION 2: AUTHOR INFORMATION

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

Please Select the Applicable Line

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☑ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** I_____ being submitted. I oppose this measure.

Arguments in support or opposition of the proposed laws are the opinions of the authors.

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Argument in Favor of Measure ☐

[or]

Argument Against Measure ☒

[Pursuant to §9282: Maximum 300 words]

Vote NO to avoid 2+ year appointments and avoid greater appointee incumbency advantage. Preserve earlier opportunities to vote.

If passed, this will cut the eligible elections to fill vacancies by at least half. This is done by eliminating the existing requirement to use an earlier election consolidated with a statewide election, a primary election for example. Longer appointments and appointee incumbency advantage allows council to handpick successors. While you may like the current city council, that may change in 15-20 years. Do you want that council making extended appointments?

Primary election voters are well engaged and informed. Larger turnout in even-year November elections does not justify sacrificing earlier opportunities to vote. Money spent on elections can be a very good investment.

This measure raises significant concerns:

- **ALLOWS LONGER APPOINTMENTS, UP TO 2+ YEARS.** Chances for simultaneous appointees increase.
- **EXPANDS PATH TO ARRANGED APPOINTMENTS.** Including bestowing incumbency advantage. By 1975 four of seven sitting council members had originally been appointed.
- **APPOINTMENT POWERS CAN BE ABUSED.** As shown by Sunnyvale's history. A 2009-2010 County Civil Grand Jury Report criticized Sunnyvale regarding the 2009 interim council appointment.

The Sunnyvale 2018 charter update already produced major cost savings in filling a vacancy by avoiding most stand-alone elections. There is no need to go too far. A district election costs only a fraction compared to one citywide.

Sunnyvale's 2020 shift to districts and a separate mayor increased the chances for council vacancies. Three district council member's terms don't align with the directly elected mayor's. If one of those council members successfully runs for mayor, a two-year vacancy is generated. **This measure distracts from deeper issues**.

Vote NO to prevent excessively long council appointments. Protect voter rights to democratically choose our elected officials at the earliest statewide election.

W: 207

PRIMARY ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached primary argument hereby states that such primary argument is true and correct to the best of their knowledge and belief. You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.

PLEASE NOTE: If the primary argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final.

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

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* Required information.

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

* **My Name is:** Stephen Scandalis

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted] Sunnyvale CA 94087

* Email Address: [redacted] Phone Number (cell/ [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: **I am a:** ☑ Registered Voter in the District ☐ Governing Board Member ☐ * Principal Officer of an Organization

* **I have attached one of the following items listed on Page 2 to this form.**

* **My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

* **My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

* **My name as a SIGNER** (signature to be printed with the primary argument) is: Stephen Scandalis
(do not include degrees or titles; print or type signature in upper- and lower-case font)

* **TITLE OF SIGNER** (to be printed with the primary argument) is: Retired Engineer/Program Manager
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
[redacted]	[redacted]
	ED SIGNATURES (signatures will be redacted prior to posting online)